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Dept. F43

Hearing Date: 06-29-26

Case # 25CHCV03337, Washington

Capital Global Finance, Inc. v. Voskericyan, et al.

Trial Date: None set.

MOTION FOR SANCTIONS

MOVING PARTY: Defendant Levon Voskericyan, in pro per

RESPONDING PARTY: Plaintiff Washington Capital Global Finance, Inc.

RELIEF REQUESTED

1. Order

imposing monetary sanctions of no less than \$1,214.46 in out-of-pocket costs incurred by defendant Levon Voskericyan on behalf of dismissed family-member defendants and additional costs, against plaintiff, its current counsel, and its former counsel.

2. Order

converting plaintiff's April 16, 2026 voluntary dismissals from "without prejudice" to "with prejudice."

3. Order

striking from the Complaint paragraphs 8, 14, 16, 20, 23, 52, 57, and 102.

4. Order

directing plaintiff and its counsel to file a corrected pleading or, in the alternative, dismissing the action with prejudice.

RULING: Motion is denied without prejudice.

SUMMARY OF ACTION

On September 17, 2025, plaintiff Washington Capital Global Finance, Inc. (Plaintiff) filed this contractual fraud action against several defendants, including defendant Levon Voskericyan, George Voskericyan, Amanda Elizabeth Shore Voskericyan, Sebastian George Voskericyan, Melissa Voskericyan, Christopher Setrak Voskericyan, Silva Voskericyan, and Nicolette Voskericyan. Defendant Levon Voskericyan filed an answer on November 12, 2025 and an amended answer on March 26, 2026. Defendant Levon Voskericyan is self-represented.

On March 25, 2026, Plaintiff filed a Substitution of Attorney form, naming Armen Manasserian and Manasserian Law, APC as new counsel.

The next day, on March 26, 2026, defendant Levon Voskericyan filed a motion for sanctions for Plaintiff's failure to timely service the Notice of Case Reassignment and file a Proof of Service. (03/26/26 Notice of Motion and Motion for Monetary Sanctions.) On April 20, 2026, the original sanctions motion was withdrawn, and defendant Levon Voskericyan filed another sanctions motion that same day, seeking \$1,500 from Plaintiff and its current and former counsel for violating the court's December 29, 2025, reassignment order. The court granted the motion. (06/09/26 Minute Order.)

On May 13, 2026, defendant Levon Voskericyan filed the instant motion for the court to impose monetary sanctions against Plaintiff, its current counsel, and its former counsel, concerning costs he incurred on behalf of dismissed family-member defendants; to convert the dismissals to "with prejudice"; to strike paragraphs 8, 14, 16, 20, 23, 52, 57, and 102 from the Complaint; and to direct Plaintiff to file a corrected pleading. Plaintiff filed an opposition on June 15,

2026, and defendant Levon Voskericyan replied on June 22, 2026.

SUMMARY OF ARGUMENTS

Defendant Levon Voskericyan[1] contends

Plaintiff and its counsel have counsel have violated Code of Civil Procedure section 128.7, subdivision (b) by filing a contractual fraud case based on a void loan agreement with usurious interest, filing a complaint with multiple facially false factual allegations made without reasonable pre-filing inquiry; maintaining the action in order to harass defendant Levon; filing an unverified complaint asserting federal racketeering, fraud, and conspiracy without obtaining client verification under penalty of perjury; maintaining frivolous claims against defendant Levon's family members who have no factual connection to the underlying transaction; and failing to withdraw or correct the Complaint after receiving two separate Safe Harbor Notices.

In opposition, plaintiff Washington Capital

Global Finance, Inc. (Plaintiff) contends the court should deny defendant Levon's frivolous motion because he failed to serve the notice of motion and motion according to the 21-day safe harbor provision in Code of Civil Procedure section 128.7. Even if Levon had complied with the safe harbor provision, the motion lacks merit because he fails to demonstrate Plaintiff's current counsel signed, filed, submitted, or later advocated the positions in the Complaint.

The motion is premature because discovery has not occurred in this matter, and all the allegations Levon attacks were on "information and belief." Section 128.7 allows such

allegations for facts Plaintiff expects to prove through discovery. Levon provides no evidence demonstrating the allegations are not grounded in fact. Moreover, defendant Levon provides no legal authority or basis for converting the dismissals to "with prejudice." If anything, the court should set an Order to Show Cause for sanctions against Levon or invite a Section 128.7, subdivision (h) motion by Plaintiff.

ANALYSIS

A. Imposing

Sanctions for Filing Frivolous Pleadings Pursuant to Code of Civil Procedure section 128.7

Sanctions may be issued against a party who is guilty of “actions or tactics, made in bad faith, that are frivolous or solely intended to cause unnecessary delay.” (Code Civ. Proc., § 128.5, subd. (a).) Recovery is dependent on a finding of subjective bad faith. (See *In re Marriage of Sahafzadeh-Taeb & Taeb* (2019) 39 Cal.App.5th 124, 134-35.)

By signing and filing a pleading, an attorney is certifying that to the best of the person’s knowledge, information, and belief, formed after a reasonable inquiry under the circumstances, all of the following conditions are met: (1) the pleading is not presented primarily for an improper purpose, such as to harass or cause unnecessary delay or needless increase in the cost of litigation; (2) the claims, defenses, and other legal contentions in the pleading are warranted by existing law or by a nonfrivolous argument for extending, modifying, or reversing existing law or establishing a new law; (3) the allegations and other factual contentions have evidentiary support or are likely to have evidentiary support after a reasonable opportunity for further investigation or discovery; and (4) the denials of factual contentions are warranted on the evidence or are reasonably based on a lack of information or belief. (Code Civ. Proc., § 128.7, subd. (b).)

A factually frivolous claim is “not well grounded in fact,” and a legally frivolous claim is “not warranted by existing law or a good faith argument for the extensions, modification, or reversal of existing law.” (*Peake v. Underwood* (2014) 227 Cal.App.4th 428, 440.) In either case, to obtain sanctions, the moving party must show the party’s conduct in asserting the claim was objectively unreasonable. (*Ibid.*) A claim is objectively unreasonable if any reasonable attorney would agree that is “totally and completely without merit.” (*Id.* at p. 448 [citation omitted].)

If the pleading is not withdrawn after notice of facts demonstrating that a complaint lacks merit, the court may strike the claims and award reasonable attorney’s fees and costs incurred in moving for sanctions. (Code Civ. Proc., § 128.7, subd. (c)(1).) “Under section 128.7, the party moving for sanctions must serve the motion on the

opposing party, but the motion 'shall not be filed with or presented to the court unless, within 21 days after service of the motion, or any other period as the court may prescribe, the challenged paper, claim, defense, contention, allegation, or denial is not withdrawn or appropriately corrected.'" (Transcon Financial, Inc. v. Reid & Hellyer, APC (2022) 81 Cal.App.5th 547, 550, emphasis added [quoting Code Civ. Proc., § 128.7, subd. (c)(1)].)

The moving party must follow a two-step procedure. First, the moving party must serve the motion for sanctions on the offending party. (Martorana v. Marlin & Saltzman (2009) 175 Cal.App.4th 685, 698.) During the 21-day period after service, the offending party may withdraw the challenged pleading. (Ibid.) Second, if the offending party does not withdraw the challenged pleading during the 21-day period, the moving party may file the motion for sanctions. (Ibid.)

B. Defendant

Levon Voskericyan's motion is procedurally defective because Levon failed to comply with the "Safe Harbor" requirements in Code Civil Procedure section 128.7, subdivision (c)(1).

Code of Civil Procedure section 128.7, subdivision (c)(1) states: "Notice of motion shall be served as provided in Section 1010, but shall not be filed with or presented to the court unless, within 21 days after service of the motion, or any other period as the court may prescribe, the challenged paper, claim, defense, contention, allegation, or denial is not withdrawn or appropriately corrected."

Based on the moving papers, Plaintiff never served Defendants with a code-compliant notice of motion or motion before filing the instant motion.

On March 27, 2026, Levon served a "First Safe Harbor Notice" on Plaintiff's former counsel Arno H. Keshishian and Plaintiff's current counsel, Armen Manassarian. (Declaration of Levon Voskericyan ¶ 15.) Levon cites an Exhibit A, but no exhibits are attached to his declaration. However, Plaintiff presents a copy of the notice. (Declaration of Brent A. Kramer ¶ 6, Exh. 3.) The document noticed Levon's intent to file a motion for sanctions pursuant to Section 128.7 and challenged several allegations in the complaint and demanded that Plaintiff (1) withdraw

the complaint and file for dismissal "with prejudice" as to all defendants; or, in the alternative, (2) file an amended complaint removing the RICO allegations against Levon's family members, correct false allegations in paragraphs 8, 23, 52, and 102, remove all Quiet Title claims against tenants with no ownership interest, disclose to the court the cannabis biomass purpose of the underlying loan and the 50% per annum interest rate and \$400,000 origination fee, and provide a legally sufficient factual basis for any remaining claims; (3) file a public notice on the court docket affirmatively clearing the names of all individually named defendants against whom no factual or legal basis exists for any claim; and (4) immediately produce the entire agreement from Hydrodom 2 Corporation to Plaintiff, including all exhibits and conditions, and confirm in writing whether Plaintiff holds a valid and enforceable assignment of the loan at issue, and identify all consideration paid by Plaintiff to Hydrodom 2 in connection with the alleged assignment.

(Id. ¶ 6, Exh. 3.)

On April 16, 2026, Plaintiff dismissed the eighth (violation of RICO), ninth (Quiet Title), and tenth (Quiet Title) causes of action without prejudice; and dismissed defendants Sebastian George Voskericyan, Nicolette Voskericyan, Melissa Voskericyan, Christopher Setrak Voskericyan, and Silva Voskericyan without prejudice. (Kramer Decl., ¶ 8, Exhs. 5-12; 04/16/26 Requests for Dismissal.)

On April 19, 2026, Levon served a "Second Safe Harbor Notice" on Plaintiff's current counsel, Armen Manassserian. (Voskericyan Decl. ¶ 16.) Levon against cites an Exhibit B, but no exhibits are attached to his declaration.

Plaintiff presents a copy of the notice.

(Kramer Decl. ¶ 6, Exh. 4.) The document noticed Levon's intent to file a motion for sanctions pursuant to Section 128.7, challenged the underlying contract in this matter, and discussed the demands from the previous letter that had not yet been "corrected." (Kramer Decl. ¶ 9, Exh. 4.) The notice also demanded that Plaintiff

dismiss all remaining causes of action with prejudice; withdraw all claims for interest, late fees, and the origination fee; correct the "false" allegations in paragraphs 8, 23, 52, 57, and 102; file a verified complaint or withdraw the unverified complaint; and dismiss defendant Mammoth Labs, LLC from this action. (Id. ¶ 9, Exh. 4.)

The two Safe Harbor Notices were informal notices of defendant Levon's intent to seek sanctions.

The moving papers demonstrate that the motion and notice of motion filed with the court were not included with either of the notices.

“[I]nformal notice of an intent to seek sanctions in the future cannot serve as a substitute to the requirements set forth in section 128.7 for a formal noticed motion.” (Barnes v. Dep’t of Corrections (1999) 74 Cal.App.4th 126, 136 [discussing Fed. Rules Civ. Proc., rule 11 Advisory Committee Notes from the 1993 amendments requiring service of the actual motion that is later filed]; In re Marriage of Falcone & Fyke (2008) 164 Cal.App.4th 814, 827 [“Under section 128.7, the papers to be served on the opposing party as notice of intent to file a section 128.7 sanctions motion must be the same papers that are ultimately filed with the court no less than 21 days later.”]; CPF Vaseo Associates, LLC v. Gray (2018) 29 Cal.App.5th 997, 1007 [letters to opposing counsel threatening sanctions is insufficient].)

“Adequate notice prior to the imposition of sanctions is not only mandated by statute, but also by the due process clauses of the state and federal Constitutions.” (Martorana v. Marlin & Saltzman (2009) 175 Cal.App.4th 685, 700; see also In re Marriage of Reese & Guy (1999) 73 Cal.App.4th 1214, 1220-1221 [discussing due process and constitutional implications as to Sections 128.5 and 128.7].)

Because defendant Levon Voskericyan failed to comply with the 21-day pre-filing Safe Harbor requirements of Section 128.7, subdivision (c)(1), the court lacks authority to consider the motion.

Therefore, the motion is denied without prejudice.

CONCLUSION and ORDER

Defendant Levon Voskericyan’s motion to impose sanctions pursuant to Code of Civil Procedure section 128.7 is denied without prejudice.

Defendant Levon Voskericyan to give notice.

[1] Because defendants Levon Voskericyan and Amanda Elizabeth Shore Voskericyan share the same last name, the court refers to them by their first names for clarity.